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IN THE HIGH COURT OF DELHI AT NEW DELHI
CIVIL APPELLATE JURISDICTION
REGULAR FIRST APPEAL NO. 806 OF 2017

MEMO OF PARTIES

Status of Parties

Before Before
Trial Court High Court

Pushpa Uttamchandani,
wife of Mr. Vinod Uttamchandani,
resident of 19007 Fikse Lane,
Cerritos,
California,
USA
Through her duly constituted attorney
Sunder Hemrajani,
son of late Shri G.H. Hemrajani,
resident of D-288, 2nd Floor,
Defence Colony,
New Delhi-110 024.

Plaintiff Appellant

Vs.

1. Gopi Hemrajani (since deceased)
wife of late Shri A. H. Hemrajani,
through Dwarka Jethanand Hemrajani,
12/8, Nehru Enclave(East),
Kalkaji, New Delhi – 110019
(who was permitted to represent
the estate of deceased,
Defendant No. 1 vide order
dated 06.11.2012 in the suit
subject to just exceptions.)

Defendant Respondent
No.1 No. 1

2. Dwarka Jethanand Hemrajani,
son of Shri Jethanand Hemrajani,
81-C, Pocket-III,



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Mayur Vihar, Phase-I,

Delhi-110 091

Also at: 12/8, Nehru Enclave (East)),

Kalkaji,

New Delhi-110 019.

Defendant Respondent

No. 2

No. 2

NEW DELHI

DATED: 18-09-2017

FILED BY:

R. Virmani

(RASHMI VIRMANI)

E. No.: D-89/88

(VIRMANI & VIRMANI)

Advocates for the Appellant

1, Link Road, 2nd Floor,

Jangpura Extension,

New Delhi-110014.



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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ RFA 806/2017

PUSHPA UTTAMCHANDANI

..... Appellant

Through: Mr.Rajeev K. Virmani, Sr. Adv. with
Ms. Rashmi Virmani, Ms. Ruchika
Agarwal, Ms.Devanshi Madan,
Ms.Gunjan Soni and Mr. Mrigagnk
Behl, Advs.

versus

GOPI HEMRAJANI(SINCE DECEASED) THR LRS & ANR

..... Respondents

Through: Mr.Anil K. Airi, Sr. Advocate with
Mr.Ravi K. Chandna and Mr.Karan
Chhibber, Advs.

CORAM:

HON'BLE MR. JUSTICE JASMEET SINGH

ORDER

11.10.2023

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CM APP No. 52876/2023-DIRECTIONS

1. This is a joint application seeking to take on record the settlement agreement dated 27.09.2023, passing a decree in terms of the said settlement and for setting aside the impugned judgment and decree dated 31.07.2017 passed by the learned ADJ-04, South-East District, Saket Courts, New Delhi in Suit No. 209/16, CIS No. 6898/16.
2. I have perused the settlement agreement arrived at between the parties before the Delhi High Court Mediation and Conciliation Centre and the same is lawful.
3. The appellant is present through her attorney Mr.Sunder Hemrajani. The respondent-Mr.D.J. Hemrajani is also present.
4. Parties state that the settlement arrived between them is through their



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own free will, without any coercion or threats, pressure or undue influence. They undertake to remain bound by the terms & conditions in the settlement.

5. For the said reasons, the decree is passed in terms of the settlement agreement dated 27.09.2023 and the impugned judgment and decree dated 31.07.2023 passed in Suit No. 209/16, CIS No. 6898/16 by ADJ-04, South-East District, Saket Courts, New Delhi is set aside.

6. Since the matter has been settled before the Delhi High Court Mediation & Conciliation Centre, the entire Court Fee is directed to be returned.

7. Learned Senior Counsel for the petitioner submits that the amount of Court Fee refunded shall be voluntarily deposited in the Green Delhi Fund with UCO Bank.

8. Original documents filed by the respective parties be returned to them after filing certified copies of the same.

9. For the said purpose, the parties to appear before the Joint Registrar on 17.11.2023.

10. The present appeal is disposed of along with pending applications, if any.

JASMEET SINGH, J.

OCTOBER 11, 2023

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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ RFA 806/2017

PUSHPA UTTAMCHANDANI

..... Appellant

Through: Ms Rashmi Virmani and Ms Ruchika
Agarwala, Advs.

versus

GOPI HEMRAJANI (SINCE DECEASED) THR LRS & ANR

..... Respondents

Through: Mr Ravi Krishan Chandna, Mr Mudit
Ruhella and Mr Kanishk Parmar,
Advs.

CORAM:

HON'BLE MR. JUSTICE JASMEET SINGH

ORDER

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01.11.2023

CM APPL. 56191/2023

1. This is an application by the appellant pointing out typographical error in the order dated 11.10.2023.
2. The date of 31.07.2023 in paragraph 5 of the order dated 11.10.2023 may be read as 31.07.2017.
3. Mr Ravi Krishan Chandna, learned counsel for the respondents states that in paragraph 3 of the order dated 11.10.2023, the complete name of the respondent- Mr.D.J. Hemrajani being Mr Dwarka Jethanand Hemrajani be recorded.
4. The above two corrections are directed to be read in the order of 11.10.2023.
5. The application is disposed of.

JASMEET SINGH, J

NOVEMBER 1, 2023/sr

Click here to check corrigendum, if any



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**Examiner Judicial Department
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